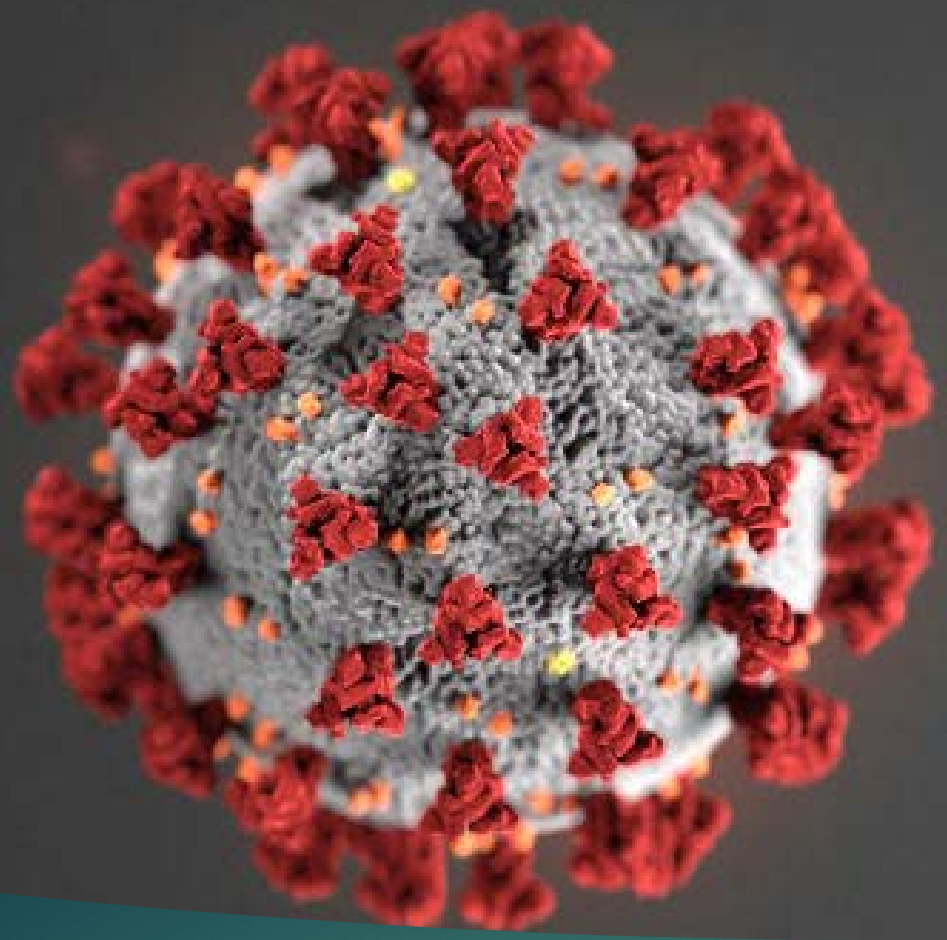

The Family First Coronavirus Response Act (FFCRA)

What employees should know

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The Family First Coronavirus Response Act (FFCRA) – Overview:

- Important facts about FFCRA;
- Expanded FMLA (EFMLA);
- Emergency Paid Sick Leave (EPSL);
- How to clock your EFMLA or EPSL under Paycom

Important facts about FFCRA

- The purpose of this new Act is to assist employees affected by the COVID-19 outbreak.
- Job-protected leave and pay, when applicable.
- The Act provides employees with two benefits:
  - Expanded FMLA (EFMLA), and
  - Emergency Paid Sick Leave (EPSL)
- This policy will be in effect from **April 1, 2020,** until **December 31, 2020.**

Expanded FMLA (EFMLA)

Employee Eligibility:

- All current employees who have been employed with Partners of the Americas for at least 30 days and are actively scheduled for work;

Reasons for Leave:

- Eligible employees who are unable to work (or telework) due to a need to care for their child when a school or place of care has been closed, or unavailable due to a public health emergency with respect to COVID-19.
- Note: no leave under this policy can be taken for any other reason, but solely related to the COVID-19 outbreak.

Expanded FMLA (EFMLA)

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Definitions

Child:

- Biological, adopted or foster child, a stepchild, a legal ward who are under 18 years of age.
- 18 or older and **incapable of self-care** because of a **mental** or **physical disability**.

Child Care provider:

- A provider who receives compensation for providing child care services on a regular basis, such as center-based, group home, family child care provider or sole caregiver (one individual, who provides child care service in a private residence).

School:

- Elementary or secondary school.

Expanded FMLA (EFMLA)

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Duration & Pay under EFMLA

Duration of Expanded FMLA (EFMLA):

- Eligible employees have the right to take up to 12 weeks of leave to use from April 1, 2020, through December 31, 2020.
- Note: No leave under this policy can be taken retroactive/before April 1, 2020.

Pay under EFMLA:

- First *10 days are unpaid*
- After the 10th day, eligible employees are entitled to receive *2/3 of an employee's regular rate* based on the numbers of hours/days worked.
- Pay will not exceed $200 per day.
- Eligible employees may combine EPSL and EFMLA to cover the first two weeks of EFMLA.

Expanded FMLA (EFMLA)

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How to Request EFMLA

All employees requesting EFMLA leave must complete the regular **FMLA Form attached to a written notice** of the need for leave to Partners' HR as soon as practicable. **The notice must include:**

- The name and age of the child/children being care for.
- The name of the school, place of care, or child care provider that closed/became unavailable due to COVID-19 reasons.
- A statement representing that no other suitable person is available during the period of requested leave.
- For children over the age of 14, a statement indicating the special circumstances that require the employee to provide care during daylight hours.

Expanded FMLA (EFMLA)

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Emergency Paid Sick Leave (EPSL)

Emergency Paid Sick Leave (EPSL)

Employee Eligibility:

All current full/part-time employees scheduled but UNABLE to work/telework due to one of the following reasons:

1. The employee is subject to a federal, state or local quarantine or isolation order related to COVID–19.
2. The employee has been advised by a health care provider to self-quarantine due to COVID–19 concerns.
3. The employee is experiencing symptoms of COVID–19 and seeking a medical diagnosis.
4. The employee is caring for an individual who is subject to either number 1 or 2 above.
5. The employee is experiencing any other substantially similar condition specified by the secretary of health and human services in consultation with the secretary of the treasury and the secretary of labor.

Emergency Paid Sick Leave (EPSL)

Definitions

Individual:

- An immediate family member or similar person with whom the employee has a relationship that creates an expectation that the employee would care for the person who self-quarantined or was quarantined. Additionally, the individual being cared for must:

  1. be subject to a federal, state or local quarantine or isolation order as described above; or

  2. have been advised by a health care provider to self-quarantine based on a belief that he she has COVID-19, may have COVID-19 or is particularly vulnerable to COVID-19.

Emergency Paid Sick Leave (EPSL)

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Duration & Pay under EPSL

Duration of Emergency Paid Sick Leave (EPSL):

- All eligible full-time employees will have up to 80 hours of paid sick leave available to use for the qualifying reasons.
- Eligible part-time employees are entitled to the number of hours worked, on average, over a two-week period.

Note: No leave under this policy can be taken retroactive/ before April 1, 2020.

Pay under EPSL:

- Paid at the employee's regular rate of pay for reasons 1-3. Capped at $511 per day, and $5,110 in total.
- Employees taking leave for reasons 4-5 will be compensated at 2/3 their regular rate of pay. Capped at $200 per day and $2,000 in total.
- Eligible employees may combine EPSL and other accruals available.

Emergency Paid Sick Leave (EPSL)

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How to Request EPSL

All employees requesting EPSL leave must complete the regular **FMLA Form attached to a written notice** of the need for leave to Partners' HR as soon as practicable. **The notice must include:**

- A copy of the federal, state or local quarantine or isolation order related to COVID-19 applicable to the employee or the name of the government entity that issued the order.
- Written documentation by a health care provider advising the employee to self-quarantine due to concerns related to COVID-19 or the name of the provider who advised the employee.
- The name and relation of the individual the employee is taking leave to care for who is subject to a quarantine or isolation order or is advised to self-quarantine.
- If applicable, the name and age of the child or children being cared for and a statement that no other suitable person is available to care for the child during the period of requested leave.
  - For children over age 14, a statement indicating the special circumstances that require the employee to provide care during daylight hours.

Emergency Paid Sick Leave (EPSL)

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How to clock your EFMLA or EPSL under Paycom

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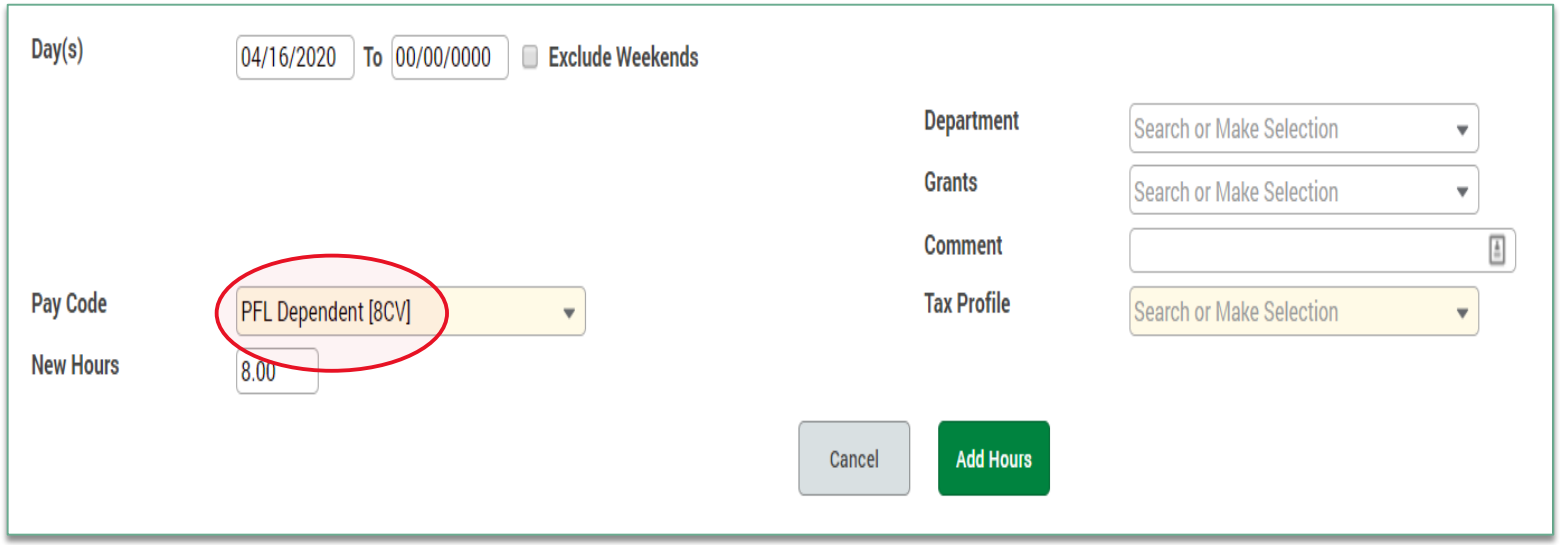
Recording EFMLA in Paycom



- ✓ Employees will record use of **Expanded FMLA Leave in Paycom** by selecting the pay code: **PFL Dependent [8CV]** as shown.
- ✓ The **department and grant** can be left **blank**, as the system will default to the home department.
- ✓ **NOTE:** this coding is updated on the back end upon processing payroll.
- ✓ **Remember:** cap per day for Expanded FMLA Leave is $200

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Recording EPSL in Paycom

Employees will record use of Emergency Paid Sick Leave in Paycom depending on the reason for its use as follows:

1. The employee is subject to a federal, state or local quarantine or isolation order related to COVID–19.

2. The employee has been advised by a health care provider to self-quarantine due to concerns related to COVID–19.

3. The employee is experiencing symptoms of COVID–19 and seeking a medical diagnosis.

4. The employee is caring for his/her child or individual who is subject to either number 1 or 2 above.

5. The employee is experiencing any other substantially similar condition specified by the secretary of health and human services in consultation with the secretary of the treasury and the secretary of labor.

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Recording EPSL in Paycom

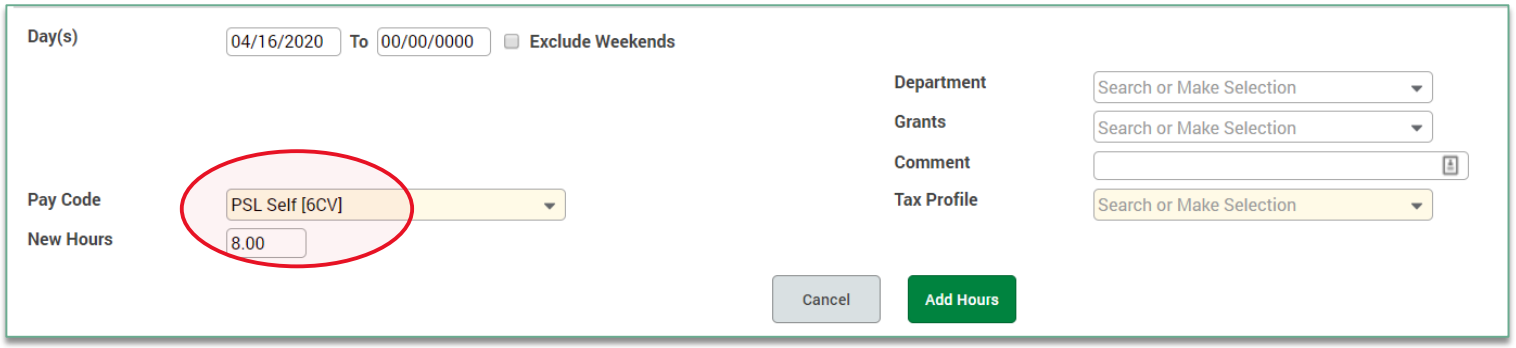
Reasons:

1. The employee is subject to a federal, state or local quarantine or isolation order related to COVID–19.

2. The employee has been advised by a health care provider to self-quarantine due to concerns related to COVID–19.

3. The employee is experiencing symptoms of COVID–19 and seeking a medical diagnosis.

For reasons 1-3 employees will record the use of EPSL in Paycom by selecting the pay code: ***PSL Self [6CV]*** as shown:



Note: The cap per day for EPSL for reasons 1-3, is $511/day.

- ✓ The department and grant can be left blank, as the system will default to the home department.
- ✓ This coding is updated on the back end upon processing payroll.

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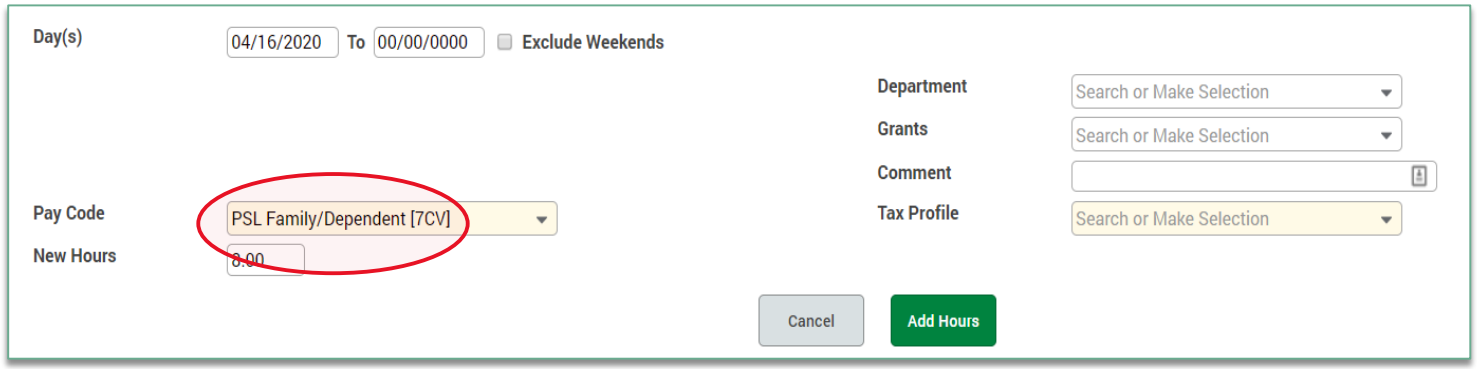
Recording EPSL in Paycom

Reasons:

4. The employee is caring for his/her child or individual who is subject to either number 1 or 2 above.

5. The employee is experiencing any other substantially similar condition specified by the secretary of health and human services in consultation with the secretary of the treasury and the secretary of labor.

For reasons 4-5 employees will record use of EPSL in Paycom by selecting the pay code: ***PSL Family/Dependent [7CV]*** as shown:



Note: The cap per day for EPSL for reasons 4-5, is $200/day.

- ✓ The department and grant can be left blank, as the system will default to the home department.
- ✓ This coding is updated on the back end upon processing payroll.

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Tracking EPSL in Paycom

Paycom enabled a new tab for Emergency Paid Sick leave (EPSL) where employees can track their remaining hours under their profile:

- ✓ Employees should select "Accrual Information" and review the Emergency Paid Sick Leave box.
- ✓ As mentioned, all eligible full-time employees will have up to 80 hours of paid sick leave available to use for the qualifying reasons.
- ✓ Any unused paid sick leave **will not** carry over to the next year or be paid out to employees.

Emergency Paid Sick Leave (Award Hours Per Annum - Custom Date Anniversary - 01/01) Make Changes

Accrual Information	Accrual Policy	Is Accrual Active for Employee?	Hidden Online from Employee	Hidden from Employee Checks	Years of Service	Are Increments Required
	6 - Emergency Paid Sick Leave	Yes	No	No	3	No

Accrual Dates	Accrual Added	Hire Date	Accrual Date	Next Award	Next Reset	Next Anniversary
	04/13/2020	01/17/2017	01/17/2017	01/01/2021	01/01/2021	01/01/2021

New Hire Dates	Award Start	Redeem	Show Online	Show on Checks
	01/17/2017	01/17/2017	01/17/2017	01/17/2017

Accrual Amounts	Awardable Hours	Beginning Balances	Awarded Amount	Taken Amount	Available
	0.00	0.00	0.00	0.00	0.00

Accrual Limits	Period Limit	Year-to-Date	Life-to-Date	Annual Taken Limit	Min Time-Off Hours Available
	0.00	0.00	80.00	80.00	0.00

Questions?